



JOHNSTONE SUPPLY

Rochester: 95 Halstead Street, 14610
Toll Free: (800) 724-8806
T: (585) 482-8000 • F: (585) 482-6000
E: ROCSales@JohnstoneHVAC-NY.com

Syracuse: 835 Canal Street, 13210
Toll Free: (877) 724-8806
T: (315) 479-8800 • F: (315) 479-8600
E: SYRSales@JohnstoneHVAC-NY.com

Order on-line at www.JohnstoneSupply.com/store141.

July 28, 2021

Mr. Peter Frank
340 Haley Road
Ontario, NY 14519

Dear Pete,

This letter is notice that your employment with Johnstone Supply of Central NY, (hereafter referred to as the "Company") will be terminated effective Wednesday, July 28, 2021. As such, your benefits provided by the company will cease shortly. Subsequent to your termination you will receive two paychecks. The first paycheck on pay date Friday, August 6, 2021 will include your regular earnings up to and including Wednesday, July 28, 2021. The second check on pay date Friday, August 13, 2021, will include all supplemental compensation including commissions. Outlined below is information concerning your rights to continue benefits that were in effect while employed by the Company. Please review the following information and contact Ken Livingston or me should you have any questions.

Health Insurance

You do not have health insurance coverage through the Company

Short Term Disability and Workers' Compensation

Your Company paid short-term disability and workers compensation coverage will terminate on Wednesday, July 28, 2021.

Cancer, Life, Accidental Death & Dismemberment (AD&D) and Disability Insurances

You will be provided insurance conversion paperwork for your Mutual of Omaha Life and AD&D insurance and your Voluntary Life policy in the mail within 2 weeks. If you do not receive this paperwork, please contact Paul Navritil at 585-270-5761.

Accrued Paid Time Off

In accordance with Company policy, accrued but unpaid PTO pay will not be paid out.

401(k) Plan

The Company's contribution to the 401(k) Plan on your behalf ends with your final paycheck on pay date Friday, August 13, 2021. Paperwork notifying you of your rights and options with regard to this plan will be forthcoming. You have an outstanding loan against your 401(k) account and you therefore have a three-month grace period to repay the loan in full or the loan will go into default. Please feel free to contact Paul Winkler, Focused 401(k) Partners at (585) 586-2463 or by email at paul.winkler@lpl.com to assist you with any necessary paperwork or to answer questions concerning your options.

JOHNSTONE SUPPLY of CNY - continued

Company Property

We request that you return any company property including but not limited to your employee handbook, laptop, counter keys, and access and related peripherals, and any information pertaining to and literature you have for Johnstone Supply or its customers including but not limited to product pricing and customer lists, etc. Please review and sign the accompanying property addendum.

Unemployment Insurance

Enclosed is NYS Form IA 12.3, your record of employment. You will need this form to file for unemployment benefits if you so choose.

If we can be of any assistance to you, or if you would like specific details regarding the termination of these programs, please feel free to contact me at (585) 969-1472.

Sincerely,

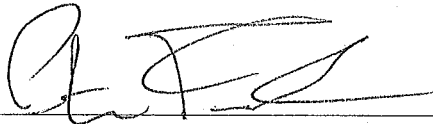


Ann Maynard
Human Resources
Johnstone Supply of CNY
Ann.maynard@johnstonehvac-ny.com

Contacts:

Kenneth Livingston – (585) 441-0340 (Johnstone Supply of CNY)
Paul Winkler, Focused 401k Partners – (585) 586-2463 (401k Representative)
Paul Navritil – (585) 270-5761 (U.S. Employee Benefits)
Paul Owens – (844) 464-7285 x10 (AFLAC Representative)

Employee Signature



Print Name

PETER FRANK

Date

7-28-20

ADDENDUM TO TERMINATION LETTER: COMPANY PROPERTY

Acknowledgement

I, Peter Frank, acknowledge that while I was working for Johnstone Supply of Central NY (JSCNY), I have taken proper care of all company equipment that I was entrusted with. I further understand that upon my termination, I will return all JSCNY property, and that the property will be returned in proper working order. I understand I may be held financially responsible for lost, stolen, or damaged property. This agreement includes, but is not limited to, company property/devices including all confidential data, lists, copies of customer/supplier contact data/product data whether written, electronic, stored on the web must be returned to the President of JSCNY by Friday, July 30, 2021.

I understand that failure to return equipment will be considered theft and may lead to criminal prosecution by JSCNY. See list below.

Company Property

1. Vehicle with Keys and Gas Card
2. Cell Phone and Charger(s)
3. Laptop and Charger(s)
4. Any Software, Logins, etc.
5. Product Samples

Employee Signature: _____



Print Name: _____

PETER D. FRANK

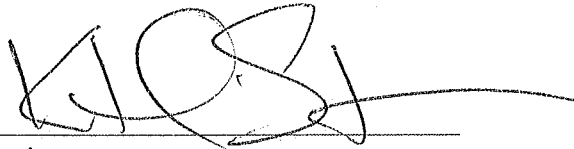
Address: _____

340 HALL RD

Date: _____

7-28-21

President Signature: _____



Print Name: _____

Ken Livingstone

Address: _____

77 HASTON ST, #3

Date: _____

7-28-21